

officials from the DVB and Municipal Corporation of Delhi (MCD), guilty of criminal negligence in flouting safety norms which resulted in the tragedy.

Theatre owners Sushil and Gopal Ansal have been charged with blocking the key exit points of the hall by putting up additional seats—43 in all—and sentenced to two years' imprisonment. All the other officials have been found guilty under Section 304A of the Indian Penal Code, which carries a maximum punishment of 10 years in jail.

Theatre manager Radha Kishan Sharma has been held guilty of neglecting fire safety measures, while two other managers, Nirmal Singh Chopra and Ajit Choudhary, have been accused of the same offences and held responsible for closing the air-conditioning vents and ventilation outlets. The tragedy could have been averted on that fateful day, when the transformer began sparking. DVB inspectors Brij Mohan Satija and Anand Kumar Gera and senior fitter Bir Singh were called in to repair it but they did a hasty job without crimping the wires. They have been held responsible for negligence and for the faulty location of the trans-

former. MCD administrative officials Shyam Sunder Sharma and N.D. Tiwari, responsible for monitoring all facilities in the hall, issued No Objection Certificates without even visiting it and have been held guilty of not recommending suspension of the licence of the theatre. This is among the few cases perhaps where the management and a host of government agencies have been together held guilty of criminal negligence by the courts.

"This landmark verdict will create respect for observance of safety measures by cinema halls and ensure government officials are more careful in monitoring them. Courts fixing the responsibility of government officials is a good sign, otherwise there seems to be no other way to sensitise them to public safety," says Senior Advocate K.T.S. Tulsi, who represented the families of the Uphaar victims.

The victims' families say it is too little, too late. They say they are aghast that the theatre owners have got away with just two years' imprisonment. "It means the Ansals face just 12 days' imprisonment for each of the deceased," says an anguished Neelam Krishna-

murthy who lost her teenage children, Unnati, 17, and Ujjwal, 13. Legal experts say that the Ansals were the real culprits who manipulated safety norms but got away with a mere slap on their wrists. "To think that doorkeepers and managers could stand up to dictate safety norms to their owners is a fallacy," says senior Supreme Court advocate Kamini Jaiswal. "The owners, for whom the safety norms were bent, have got away scot-free."

Yet, in a country where responsibility for even more horrific tragedies are yet to be fixed—for example, the world's worst industrial disaster at the Union Carbide plant in Bhopal in 1984, which claimed over 2,500 lives or, more recently, last year's fire at a consumer exhibition in Meerut which killed 60 people—the Uphaar verdict is a watershed of sorts. It has the potential to change the way we look at public safety.

"The verdict sets a good legal precedent and while the process has taken so long and there will be appeals in higher courts, it will deter those flouting safety norms," says Supreme

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